

Court No. - 39

Case :- WRIT - C No. - 29367 of 2022

Petitioner :- Santosh Kumar Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Praveen Shrivastav

Counsel for Respondent :- C.S.C.,Alok Mishra,Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

Heard learned counsel for the petitioner, Sri Alok Mishra and Sri Baleshwar Chaturvedi learned counsels for the respondents and perused the record.

The petitioner herein is raising a dispute with regard to the demand raised by the Sub-Divisional Officer, Electricity Distribution Sub-Division-I, Sashni, Hathras by communication dated 2.12.2019 on the basis of reading of the check meter installed in the premises in question on the application moved by the petitioner.

The dispute is primarily about the computation made by the respondent.

We, therefore, find it fit to relegate the petitioner to approach the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khand-III, Hathras namely respondent no. 2 by invoking the provisions of Clause 6.5 of the U.P. Electricity Supply Code, 2005.

In case, the petitioner files such a representation within a period of three weeks from today, the competent authority shall be under obligation to take an expeditious decision strictly in accordance with law, preferably, within a period of three weeks, thereafter.

The petitioner herein has challenged only the demand notice. It is provided that no further coercive action shall be taken against the petitioner till the decision, in accordance with law, is taken by the competent authority in light of the above direction.

However, in case of default on the part of the petitioner to approach the competent authority, it would be open for the respondent department to proceed in accordance with law.

The writ petition is **disposed of**.

Order Date :- 20.10.2022/Brijesh